

Form No.HC.JD/C-121
ORDER SHEET

IN THE LAHORE HIGH COURT,
RAWALPINDI BENCH, RAWALPINDI
JUDICIAL DEPARTMENT

W.P. No.1421 of 2025

Dr. Fakhar Munir Sial **Versus** Government of the Punjab, etc.

Sr. No. of Order/ Proceeding	Date of Order/ Proceeding	Order with Signature of Judge, and that of parties or counsel, where necessary
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10.06.2025 M/s. Taimoor Aslam Khan, ASC, Usman Minhas and
Mudassir Abbas, Advocates with the Petitioners.
Barrister Raja Hashim Javed, Assistant Advocate-General
with Naveed Ahmad Goraya, Senior Law Officer,
Specialized Healthcare and Medical Education Department,
Government of the Punjab, Lahore.
Mr. Jahangir Jadoon, ASC for the Respondent No.2/PMDC.

Through this single **order**, I intend to decide this writ
Petition as well as connected Writ Petition No.1422 of 2025,
as the same question of facts and law is involved in both these
cases.

2. Through these writ petitions under Article 199 of the
Constitution of the Islamic Republic of Pakistan, 1973 (the
“Constitution”), the Petitioners have impugned the orders
dated 30.04.2025 (termination letter of Dr. Farrukh Munir
Sial), 02.05.2025 (termination letter of Dr. Muhammad Arif
Aziz) alongwith letters dated 02.05.2025, issued by the
Respondent No.1/Secretary, Specialized Healthcare and
Medical Education Department, Government of the Punjab,
Lahore and Respondent No.2/Pakistan Medical and Dental
Council (PMDC), respectively, being illegal and unlawful.

3. Learned counsel for the Petitioners stated that both the Petitioners are registered Medical Practitioners having PMDC Registrations No.983883-P and No.717107-01-P, respectively; were selected purely on merit for the Post Graduate of Level-III Program notified on 15.05.2024 and were placed at Benazir Bhutto Hospital for their Post Graduate Residency Training. Further stated that they have been terminated without any inquiry and due process of law. Added that Section 13.3 of the Policy and Procedure Manual (PPM) of Post-Graduate Residency (PGR) of Level-III Programs (the “Policy”) provides the right of appeal before the Respondent No.1/Secretary, Specialized Healthcare and Medical Education Department, Government of the Punjab against the decision of the Departmental Committee. But the Petitioners have been directly terminated by the Secretary himself on the allegation of indiscipline, misconduct and involvement in agitation and creating law and order situation, without any inquiry by the Departmental Committee. Learned counsel argued that the Petitioners did not participate in any protest, hence, the impugned orders/letters infringed their fundamental rights guaranteed under the Constitution. He added that Article 4 of the Constitution clearly states that it is Petitioners’ inalienable right to be treated in accordance with law by the Respondents and no action detrimental to the reputation, life, and liberty shall be taken except as per law. He maintained that Article 10-A of the Constitution provides right of fair trial and due process for determination of rights and obligations but the Petitioners have been terminated without adopting due process and proper procedure of law.

4. Learned counsel was confronted to the maintainability of this Petition in the light of the judgments reported as

“Mian Ali Asghar versus Government of the Punjab and others” (2020 CLC 157 Lahore) and “Mian Ali Asghar versus Government of the Punjab and others” (2021 MLD 370), wherein this Court has already called off strikes of doctors back in November, 2019, with the undertaking given by them not to have more strikes, observing that:

*“Regarding extent of one’s fundamental right of protest/procession, guidance can be sought from the judgment of **Indian Kerala High Court in A. Jacob case (AIR 1993 Kerala 1)**, wherein it has categorically been held that:*

19. Professions of rights, distanced from realities of life, would make liberties unreal. The liberties of some, could prove to be the end of the liberties of others. The loquacious may silence the meek. The State must protect the mute, the unorganised and inarticulate, against onslaught of enthusiasm of the vocal or the vociferous. It is no use saying hosannas to freedom, unless such freedom is real. Real they will be, only if there is an ordered society. Order to liberty, is what oxygen to life is. There is no basis to think that freedom and order are not compatible. They are complementary. Liberty will be lost in excess of anarchy, if there is no order. Regulation and suppression are not the same in purpose or result. Time it is to think, whether un-disguised assertions of rights by some, have not imperilled rights of others. If one were to recognise right to protest by blocking roads and railways, it is recognition of a right, to deny rights of the peaceful citizens. Acorns of today, will grow into oaks of tomorrow.”

5. Learned Law Officer also objected to the maintainability of this Petition by stating that the impugned orders have been passed in scenario of strikes of the Doctors in the Province, which violates their own policy and procedure. He further pointed out that Section 13.4 of the Policy states that *“No PG Resident will be allowed to participate in any political activity, agitation, strike, etc. at any forum. If found indulged in such activities, his/her PG*

Training will be liable to be terminated.” Hence, the Petitioners deserves no leniency.

6. Mr. Jahangir Jadoon, ASC for the Respondent/PMDC also vehemently objected to the maintainability of this Petition by stating that the PMDC being regulatory body has rightly issued the order/notice dated 02.05.2025 alongwith letter dated 02.05.2025 to the Petitioners.

7. Heard. Record perused.

8. The basic arguments of learned counsel for the Petitioners is that the Petitioners have been terminated without any inquiry and due process of law. Moreover, Section 13.3 of the Policy provides the right of appeal before the Respondent No.1/Secretary, Specialized Healthcare and Medical Education Department, Government of the Punjab against the decision of the Departmental Committee. But the Petitioners have been directly terminated by the Secretary himself on the allegation of indiscipline, misconduct and involvement in agitation and creating law and order situation, without any inquiry by the Departmental Committee. There is denial on part of the Petitioners regarding their participation in any protest. Besides this both the Petitioners submitted their separate sworn affidavits in this regard. The contents of both affidavits are as under:

AFFIDAVIT

I, Dr., do hereby solemnly affirm and declare as under:

1. That I am a medical doctor currently registered with the Pakistan Medical and Dental Council and was serving as a PGT at Benazir Bhutto Hospital Rawalpindi during the period in question.

2. That I was not involved in any form strike carried out by doctors or any other staff during the recent events that led to disciplinary action against me.

3. That during the entire period, I was present on my assigned duty stations and continued to perform my professional responsibilities with sincerity and diligence. This is further evidenced by my duty rosters, attendance records, and endorsements from my Head of Department and direct supervisors.

4. That I do not intend to be part of such activities in the future.

5. That I remain committed to the ethical and professional obligations of my medical practice and shall continue to serve patients to the best of my abilities, in accordance with the law and institutional policies.

6. That this affidavit is being submitted to respectfully clarify my position and to be placed on record before the Honorable Court and relevant authorities.

I hereby solemnly affirm and verify that the contents of this affidavit are true and correct to the best of my knowledge and belief and nothing has been concealed therein.

9. The Petitioner/Dr. Fakhar Munir Sial has placed on record a certificate dated 02.06.2025 issued by Prof. Dr. Zein El Amir, Head of Urology Department, RMU and Allied Hospitals, Rawalpindi, which states that:

TO WHOM IT MAY CONCERN

This is to formally certify that Dr. Fakhar Munir Sial, who is serving as a Registrar in our department, has consistently exhibited exceptional professionalism, integrity, and dedication throughout his tenure.

It is hereby confirmed that Dr. Fakhar Munir Sial had no involvement whatsoever in any strike, protest, or unlawful activity during the recent events. He remained fully committed to his clinical responsibilities and continued to provide patient care without interruption.

Even after the issuance of his termination orders, Dr. Fakhar Munir voluntarily continued to fulfill his duties, demonstrating commendable devotion to patient welfare and departmental operations. His conduct during this period has been exemplary and is a testament to his character and professional ethics.

Dr. Fakhar Munir is an integral part of our team, and his contributions have been vital to the department's smooth functioning. I strongly endorse his commitment to service and affirm his positive role within the hospital.

The Petitioner/Dr. Fakhar Munir Sial has also made available copy of a letter dated 18.02.2025, issued by Dr. Alex Landau, Director of Examination, Royal College of Surgeons of England; regarding Intercollegiate MRCS Part A International January, 2025, declaring his Result for Part A as “Pass” and invitation for his participation as Part B.

10. The Petitioner/Dr. Muhammad Arif Aziz has also placed on record letter dated 06.05.2025 issued by Prof. Dr. Fuad Ahmad Khan Niazi, Head of Department Ophthalmology, RMU and Allied Hospitals, Rawalpindi, which states that:

It is certified that Dr. Muhammad Arif Aziz, working as Postgraduate Trainee (PGT), FCPS Ophthalmology in the Department of Ophthalmology, Benazir Bhutto Hospital, Rawalpindi, has been associated with this department since 24th of July, 2024.

Dr. Arif is a decent fellow who has maintained a clean record with no disciplinary issues or complaints during his stay in the department. His performance is consistently rated as above average excellent, and is considered a valuable asset to the department.

During the month of April 2025, Dr. Arif Aziz fulfilled his responsibilities and actively participated in most academic and clinical activities of the department. (His attendance record is being attached).

11. From the record, it is evident that the Petitioners have been terminated from service through the impugned orders directly invoking of Clause 13.4 of the Policy, which prohibits participation in strikes and other similar activities. However, Clause 13.3 of the said Policy unequivocally

provides one-time right of appeal to the PGRs before the Respondent No.1/Secretary, Specialized Healthcare and Medical Education Department, against the decision of the Departmental Committee. In the instant matter, the Petitioners were directly terminated by the Secretary/Respondent No.1, who also happens to be the **Appellate Authority** under Clause 13.3, without initiating or concluding any inquiry through the Departmental Committee. This approach not only undermines the Petitioners' right of appeal as provided under the Policy but also constitutes a blatant violation of the fundamental rights guaranteed under Articles 4 and 10-A of the Constitution.

12. The Petitioners have categorically denied their involvement in any protest or unlawful activity and have submitted their duly sworn affidavits asserting that they remained present on their respective duty stations and continued to perform their responsibilities with utmost sincerity and diligence. Their claim stands corroborated by duty rosters, attendance records and formal certifications issued by their respective Heads of Departments, explicitly attesting to their good conduct and consistent performance during the relevant period. Notably, one of the Petitioners, Dr. Fakhar Munir Sial, even continued to discharge his duties voluntarily despite issuance of the termination order, which further reinforces his commitment to the profession. In addition, both Petitioners have expressed their unwavering dedication to ethical and professional obligations, and an intent to avoid any form of disruptive conduct in future.

13. Thus, keeping in view the Petitioners' professional record, future career prospects; the impugned the orders dated 30.04.2025 (termination order of Dr. Farrukh Munir Sial), 02.05.2025 (termination order of Dr. Muhammad Arif

Aziz), issued by the Respondent No.1/Secretary in violation of the due process of law and without adhering to the procedure prescribed under the applicable Policy, are hereby **set aside**.

14. So, for as the impugned letters dated 02.05.2025 issued by the PMDC on the subject “CANCELLATION OF PERMANENT PRACTICING LICENSES” to both the Petitioners requiring their explanation, is concerned, it is pertinent to mention here that in the judgment reported as “ABWA Knowledge Pvt. Ltd. v. Federation of Pakistan, etc.” (**P L D 2021 Lahore 436**) this Court has already declared the PMDC as a Regulatory Body. This judgment was upheld by the learned Division Bench of this Court vide judgment reported as “ABWA Knowledge Pvt. Ltd. through Director and another v. Federation of Pakistan, through Secretary, National Health Services and another” (**2021 MLD 1455**) and subsequently, upheld by the Hon’ble Supreme Court of Pakistan in C.M.A.No.5777/2021 in C.P.Nil/2021 and Civil Petition No.4944 of 2021 (**2022 SCMR 72**). Therefore, the PMDC being Regulator is the competent authority with the powers to proceed against the Petitioners in accordance with law.

15. When confronted with the above legal position, learned counsel for the Petitioners submitted that to this extent, he will not press this petition if a direction be issued to the Respondent/PMDC to entertain reply/defence of the Petitioners and decide the matter within a short span of time. Learned counsel for the Respondent/PMDC has no objection in this regard.

16. In view of the above, in order to advance the cause of justice and to prevent miscarriage of justice, to this extent, these writ petitions are **disposed of**. The Petitioners are

directed to file reply/defence/explanation of the impugned letters dated 02.05.2025 before the Respondent/PMDC, who will then decide the matter strictly in accordance with law, through a speaking order, within four (04) weeks of filing reply/defense by the Petitioners.

(JAWAD HASSAN)
JUDGE

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